

		Notably, Plaintiff's counsel provides that on April 28, 2022, Plaintiff's counsel was contacted by Matthew Urbach, Esq., Defendant's then-counsel, and that Plaintiff's counsel informed Mr. Urbach that Plaintiff refused to arbitrate. (Slack Decl., ¶ 4; see Ex. 8 to Motion.) Thereafter, on July 29, 2022, Plaintiff's counsel informed Mr. Urbach that Plaintiff was willing to move forward with arbitration, and subsequently provided Mr. Urbach with the names of five (5) different mediators, but that neither Mr. Urbach nor Defendant ever followed up with Plaintiff's counsel regarding arbitration or mediation. (Id., ¶ 5.) Despite the fact that Defendant may have raised the issue of arbitration in 2022 and March 2023, Defendant never sought to compel arbitration, and did not follow up with Plaintiff's counsel in July 2022 when Plaintiff's counsel informed Defendant's then-counsel that Plaintiff was willing to arbitrate. Defendant did not properly seek to compel arbitration until Defendant filed this motion on May 6, 2026, more than four (4) years after Defendant requested arbitration in April 2022. To the extent that Defendant's motion to dismiss that was filed on March 11, 2025, could be construed as an attempt to compel arbitration, Defendant waited nearly three (3) years after Plaintiff informed Defendant's then-counsel on April 28, 2022, that Plaintiff refused to arbitrate to file that motion. The failure to seek to compel arbitration for years despite Defendant's knowledge of the arbitration provision in the Confidentiality Agreement constitutes conduct that is inconsistent with an intent to enforce the right to arbitrate so as to lead to the conclusion that Defendant has abandoned the right to arbitrate. Thus, the evidence indicates that Defendant has waived the right to arbitrate. Based on the foregoing, Defendant's motion to compel arbitration is DENIED. <i>Plaintiff to give notice.</i>
105	Fenning vs. Alvord, 25-01519619	Defendant, Judith Alvord ("Defendant"), moves for an order quashing the service of summons and Complaint. Defendant contends that the Court lacks jurisdiction over her as she has not been properly served with the summons and Complaint. Defendant asserts that the process server's declaration as to the alleged service of summons and Complaint on Defendant is false as she would out of the country on vacation, and not at home when she was allegedly personally served.

	Code of Civil Procedure section 418.10, subdivision (a)(1) provides that a defendant may serve and file, "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" a notice of motion "to quash service of summons on the ground of lack of jurisdiction of the court over him or her." Proper service of the summons and complaint is required for the court to obtain jurisdiction over defendants. (Code Civ. Proc. § 410.50(a); <i>Ziller Electronics Lab GmbH v. Superior Court</i> (1988) 206 Cal.App.3d 1222, 1229; <i>Dill v. Berquist Const. Co., Inc.</i> (1994) 24 Cal.App.4th 1426, 1439.) The court has no jurisdiction over a person who is not served with a complaint personally or by any other acceptable method. (See <i>Kappel v. Bartlett</i> (1988) 200 Cal.App.3d 1457, 1464 [finding that a complaint that was not served personally or by any other method upon a defendant conferred no jurisdiction upon the court over the defendant].) "Service of process is the means by which a court having jurisdiction over the subject matter asserts its jurisdiction over the party and brings home to him reasonable notice of the action. [Citation.] It is an indispensable element of due process of law. [Citation.]" (<i>Ibid.</i>) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.' " (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413.) " 'When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.' [Citation.]" (<i>Preciado v. Freightliner Custom Chassis Corp.</i> (2023) 87 Cal.App.5th 964, 975-976.) " 'The plaintiff must come forward with affidavits and other competent evidence to carry this burden and cannot simply rely on allegations in an unverified complaint.' [Citation.]" (<i>Id.</i> at p. 976.) If plaintiff meets this burden, "it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (<i>Buchanan v. Soto</i> (2015) 241 Cal.App.4th 1353, 1362.) Here, initially, no opposition has been filed, and Plaintiff, Richard Scott Fenning, has not submitted proof of the existence of jurisdiction by proving that Defendant has been properly served. Nevertheless, the Court's file reflects that a proof of service of summons was filed on October 30, 2025, and it provides that Defendant was personally served with the summons and Complaint on
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		October 24, 2025, at 6:59 p.m. by a registered California process server. (ROA 14.) In California, there is a presumption of valid service if done by a registered process server under California Evidence Code section 647. "Evidence Code section 647 provides that a registered process server's declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration. (<i>See also Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795, 69 Cal.Rptr.2d 457 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].)" (<i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) To rebut the presumption of proper service arising from a registered process server's declaration, the party seeking relief is required to present evidence that he was not so served. (<i>Ibid.</i>; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750.) Although the registered process server's declaration of service establishes a presumption of valid service, Defendant rebuts the presumption of proper service by submitting a declaration which provides that she has lived alone at her residence for 36 years; that from October 18, 2025, through November 1, 2025, she was out of the country on vacation, and no one was at home when she was allegedly personally served; that she has never met or in any way interacted with Plaintiff's process server; and that other than the alleged attempted service on October 24, 2025, she is unaware of any other attempts to serve her, and she has not been personally served. (ROA 17, Declaration of Judith Alvord, ¶¶ 2-5, Ex. A.) Based on the foregoing, the Court GRANTS Defendant's motion to quash service of summons and Complaint. The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
106	Hunter vs. Stor It Self Storage-Costa Mesa, Inc., 22-01279230	<u>MOTION TO DISMISS</u> Defendants Stor It Self Storage-Costa Mesa, Inc. and S.I. Management, LLC (together, "Stor-It Defendants") move for an Order dismissing the Third Amended Complaint and this action in its entirety with prejudice for Plaintiff's delay in prosecution; alternatively, monetary sanctions of \$1,400 for the fees incurred in preparing this Motion in addition to the unpaid monetary sanctions of \$1,485, and any further relief this Court deems just and proper.